	MEMORANDUM CIRCULAR	DOCUMENT NO. BJMP-DPRM-MC NO. 034
	TOPIC **USE OF THE TERM JAIL OFFICER RANKS AND JAIL NON-OFFICER RANKS**	ISSUE NO.
		REVISION NO. 1
	SUB-TOPIC **Guidelines in the Proper Use of Nomenclature for the Rank of the Uniformed Personnel in the BJMP**	EFFECTIVE DATE 19 JANUARY 2018
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I. REFERENCES

a. Commonwealth Act No. 1 otherwise known as the "National Defense Act";
b. Presidential Decree No. 641 the "Integration of the Police and Fire Departments and Jails in Provinces/Cities not Covered by Previous Police Integration Decrees";
c. Presidential Decree No. 765 the "Providing for the Constitution of the Integrated National Police and for Other Purposes";
d. Republic Act No. 6975 the "Department of the Interior and Local Government Act of 1990";
e. Republic Act No. 9263 the "Bureau of Fire Protection (BFP) and Bureau of Jail Management and Penology (BJMP) Professionalization Act of 2004";
f. Republic Act No. 6713 the "Code of Conduct and Ethical Standards for Public Officials and Employees";
g. Revised BJMP Manual 2007;
h. Memorandum Circular No. 2009-02 dated 02 June 2009 re: Policy on the use of the Term Jail Officer; and
i. DILG Memorandum Circular No. 2017-25 dated 6 November 2017 re: Placement and Promotion System in Key Positions of the BJMP.

II. RATIONALE

The Bureau of Jail Management and Penology, being one of the uniformed services of the government, is bound by the principle of uniformity. Thus, in almost all aspect of operation and administration the Bureau still carries the semblance of its forerunners.

Admittedly, the Bureau could not have achieved the heights where it is today without the blueprints of all its forerunners. It is, however, disheartening to know that until this time the lack of awareness of our society concerning the BJMP as an agency of the government is very apparent and most often Jail Personnel were addressed as Jail Guards, while others were being mistaken as Police. While the Bureau adheres to the doctrine of uniformity in the uniformed service, it should not remain to be identified under the shadows of its forerunner. The BJMP, being a separate and distinct agency, must uphold the provision of its governing laws.

Likewise, the Civil Service Commission required every agency to establish or set specific standards for their positions which are unique to the agency. With the passage of Republic Act No. 6975 the Chief of the Jail Bureau is now given the authority to recommend to the Secretary of Interior and Local Government its organizational structure and staffing pattern. Thus, it is the Bureau's call to create its own nomenclature for its ranks to establish its own identity. Under the Implementing Rules and Regulations (IRR) of RA 9263 which states, among others, the term "officer" shall refer to uniformed personnel in the BJMP and

Prepared By:	Reviewed By:	Approved By:
JO3 Juvy B Mintar Jr Research, Policies, Standard JNOR/ ADMIN JNOR	**JCSUPT ALLAN S IRAL, CESE** Deputy Chief for Administration / QMR	**JDIR DEOGRACIAS C TAPAYAN, CESE** Chief, BJMP
JCSUPT PAULINO H MORENO JR, CSEE Director for Personnel and Records Management		

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the same IRR states that when referring to ranks, an officer shall refer to those holding the rank of Jail Inspector and above.

Thus, to avoid confusion regarding the matter, it is logical to group the uniformed personnel of the Bureau according to its ranks. Hence, Jail Inspector and above shall compose the Jail Officer Ranks while Jail Officer 1 to Senior Jail Officer 4 shall compose the Jail Non-Officer Ranks. At present, the Bureau has been using the nomenclature "**Jail Commissioned Officer**" with respect to Jail Officer with the ranks Inspector and above. "**Jail Non-Commissioned Officer**", likewise, refer to Jail Officer with the ranks below Inspector. The use of these nomenclatures are mere adoptions from the Bureau's forerunner – The PC/INP as a major service of the Armed Forces of the Philippines (AFP).

Since we are neither being commissioned nor under the supervision of the PNP or the AFP it is quite reasonable and just that we should have our own nomenclature for our own ranks following the provisions of the IRR of RA 9263.

III. DEFINITION OF TERMS – Except as otherwise provided, the following terms shall have the following import as used in this Circular:

COMMISSION – is an official document issued by the government, conferring on the recipient the rank of commissioned officer in the AFP.

COMMISSIONED OFFICER – refers to those uniformed personnel in the PNP with the rank of INSPECTOR and above while in the case of the AFP, it shall refer to those with the rank of Second Lieutenant and above.

JAIL OFFICER – in general, the term shall refer to the uniformed personnel of the BJMP.

RANKS – refers to the rank given to uniformed personnel of the Jail Bureau such as Jail Officer 1 up to the highest rank.

JAIL OFFICER RANKS (JOR) – refers to BJMP uniformed personnel holding the rank of Inspector and above.

JAIL NON – OFFICER RANKS (JNOR) – refers to BJMP uniformed personnel holding the ranks of Jail Officer 1 up to Senior Jail Officer 4

IV. OBJECTIVES – this circular aims to:

1. Provide professionalism and clarity on certain terms in the BJMP nomenclature;

2. Prescribe the policy on the use of the terminology "**JAIL OFFICER**" to refer to the proper address/title given to all uniformed personnel of the BJMP regardless of rank; and

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3. Provides for the term "**JAIL OFFICER RANKS**" to refer to those holding the rank of JAIL INSPECTOR and above while "**JAIL NON-OFFICER RANKS**" to those holding the rank of Jail Officer 1 up to Senior Jail Officer 4.

V. POLICIES AND GUIDELINES

1. In general, all uniformed personnel of the Bureau shall always be referred to as Jail Officer. When referring to ranks, however, those holding the rank of JAIL INSPECTOR and above shall be referred to as **JAIL OFFICER RANKS (JOR)** while those holding the rank of Jail Officer 1 up to Senior Jail Officer 4 shall be referred to as **JAIL NON-OFFICER RANKS (JNOR)**.

2. The terms shall always be used in all BJMP communications, identification cards, publications, policies, procedure and practices, drills and ceremonies, and other undertakings of the BJMP when referring to the said personnel of the BJMP.

3. For this purpose, all uniformed personnel of the BJMP must conduct and carry themselves to the highest ethical standards.

4. The Community Relations Service Office(CRSO) shall have the task to use all possible platforms in fostering social awareness regarding the proper title given to the uniformed personnel of the BJMP.

VI. SEPARABILITY CLAUSE

In the event that any provision or part of this policy be declared unauthorized, unconstitutional and declared invalid by a competent authority, those provisions not affected by such declaration shall remain valid and effective.

VII. REPEALING CLAUSE

All other issuances which are inconsistent with this policy are hereby rescinded or modified accordingly.

VIII. EFFECTIVITY

This Circular shall take effect after fifteen (15) days from filing a copy thereof at the University of the Philippines Law Center in consonance with Section 3 and 4, Chapter 2, Book VII of Executive Order No. 292, otherwise known as "The Revise Administrative Code of 1987".

Prepared By:	Reviewed By:	Approved By:
JO3 Juvy B Mintar Jr Research, Policies, Standard JNOR/ ADMIN JNOR **JCSUPT PAULINO H MORENO JR, CSEE** Director for Personnel and Records Management	**JCSUPT ALLAN S IRAL, CESE** Deputy Chief for Administration / QMR	**JDIR DEOGRACIAS C KAYAYAN, CESE** Chief, BJMP

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